

Court No. - 58

Case :- WRIT - C No. - 17301 of 2012

Petitioner :- Ajeet Kumar

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Om Prakash Mishra(Nandan)

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Amreshwar Pratap Sahi,J.

Heard learned counsel for the petitioner, who has come up for a direction to the District Consumer Protection Forum, Sonbhadra to decide the Complaint Application No.76 of 2011 pending before the Forum for redressal of the grievances in relation to the rate of tariff applicable to the petitioner's electricity connection.

The contention of the petitioner is that his connection is within a rural area and, therefore, he has been subjected to wrong billing and on an increased tariff. He filed a complaint before the Consumer Forum and has also simultaneously approached the Executive Engineer, Electricity Distribution Division, Sonbhadra with a representation to correct his bills and also not to realize excess tariff from him.

Learned counsel submits that before the Consumer Forum, the opposite parties have not yet cooperated for an early disposal of the said grievance and as such, a direction be issued as prayed for.

Learned counsel for the respondent-Power Corporation submits that the petitioner ought to have approached the Consumer of Grievances Redressal Forum as constituted under Clause 7.10 of the Electricity Supply Code, 2005.

He, therefore, submits that the grievance ought to have been placed before the said Forum, so that the same could be resolved. Learned counsel for Power Corporation informs the Court that the said Grievance Forum at Sonbhadra is not functioning due to the absence of the Chairman, but the work of the said Forum is being looked after at Mirzapur, where the forum is functioning.

Accordingly, I am of the view that the petitioner should approach the said Forum along with a certified copy of this order and in the event the same is filed within 15 days the Forum shall endeavour to dispose of the same within 8 weeks. With the aforesaid directions, the writ petition is disposed of. It shall be open to the

petitioner for making a request before the officer, who will pass an order to ensure the reconnection of the petitioner upon a decision to be taken in accordance with law.

The writ petition stands disposed of.

Order Date :- 6.4.2012

AKShukla/-